resent Convention.

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intensity, an International Energy Efficiency Certificate and a Ship Energy Efficiency Management Plan on board, in accordance with article 5 of the present Convention.

19 Refer to the Procedures for port State control, 2023 (resolution A.1185(33)).

RESOLUTION MEPC.403(83) (adopted on 11 April 2025)

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6 Notwithstanding the requirements in paragraph 5 of this regulation, any port State inspection may inspect whether the Ship Energy Efficiency Management Plan is duly implemented by the ship in accordance with regulation 28 of this Annex.

Regulation 11

Detection of violations and enforcement

1 Parties shall cooperate in the detection of violations and the enforcement of the provisions of this Annex, using all appropriate and practicable measures of detection and environmental monitoring, and adequate procedures for reporting and accumulation of evidence.

2 A ship to which this Annex applies may, in any port or offshore terminal of a Party, be

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environmental monitoring, and adequate procedures for reporting and accumulation of evidence.

2 A ship to which this Annex applies may, in any port or offshore terminal of a Party, be subject to inspection by officers appointed or authorized by that Party for the purpose of verifying whether the ship has emitted any of the substances covered by this Annex in violation

of the provision of this Annex. If an inspection indicates a violation of this Annex, a report shall

be forwarded to the Administration for any appropriate action.

3 Any Party shall furnish to the Administration evidence, if any, that the ship has emitted any of the substances covered by this Annex in violation of the provisions of this Annex. If it is

practicable to do so, the competent authority of the former Party shall notify the master of the

ship of the alleged violation.

4 Upon receiving such evidence, the Administration shall investigate the matter and may request the other Party to furnish further or better evidence of the alleged contravention.

If the Administration is satisfied that sufficient evidence is available to e nable proceedings to

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may request the other Party to furnish further or better evidence of the alleged contravention.

If the Administration is satisfied that sufficient evidence is available to e nable proceedings to

be brought in respect of the alleged violation, it shall cause such proceedings to be taken

in

accordance with its law as soon as possible. The Administration shall promptly inform the Party

that has reported the alleged violation, as well as the Organization, of the action taken.

5 A Party may also inspect a ship to which this Annex applies when it enters the ports

or offshore terminals under its jurisdiction, if a request for an investigation is received from any

Party together with sufficient evidence that the ship has emitted any of the substances covered

by the Annex in any place in violation of this Annex. The report of such investigation shall be

sent to the Party requesting it and to the Administration so that the appropriate action may be

taken under the present Convention.

6 The international law concerning the prevention, reduction and control of pollution of

the marine environment from ships, including that law relating to enforcement and safeguards,

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taken under the present Convention.

6 The international law concerning the prevention, reduction and control of pollution of

the marine environment from ships, including that law relating to enforcement and safeguards,

in force at the time of application or interpretation of this Annex, applies, mutatis mutandis, to

the rules and standards set forth in this Annex.

Chapter 3 – Requirements for control of emissions from ships

Regulation 12

Ozone-depleting substances

1 This regulation does not apply to permanently sealed equipment where there are no

refrigerant charging connections or potentially removable components containing

ozone-depleting substances.

2 Subject to the provisions of regulation 3.1, any deliberate emissions of

ozone-depleting substances shall be prohibited. Deliberate emissions include emissions

occurring in the course of maintaining, servicing, repairing or disposing of systems or

equipment, except that deliberate emissions do not include minimal releases associated with